

6 Edw. 7.
c. 37.

section thirteen of the Labourers (Ireland) Act, 1906, shall be construed as if the said annual sum were substituted therein for the sum mentioned in paragraph (c) of subsection one thereof.

Short title and
citation.

4. This Act may be cited as the Supreme Court of Judicature (Ireland) Act, 1907, and, may be cited with the Judicature (Ireland) Acts, 1877 to 1897.

CHAPTER 45.

An Act to render compulsory the carrying of Lights by Vehicles at Night. [28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Lights to be
carried by
vehicles at
night.

1.—(1) Subject to the provisions of this Act, every person who shall cause or permit any vehicle to be in any street, highway, or road, to which the public have access, during the period between one hour after sunset and one hour before sunrise shall provide such vehicle with a lamp or lamps in proper working order, and so constructed and capable of being so attached as when lighted to display to the front a white light visible for a reasonable distance. If only one lamp is so provided it shall be placed on the off or right side of the vehicle, and, if the lamp or lamps are so constructed as to permit a light to be seen from the rear, that light shall be red.

(2) He shall also, if the vehicle is used for the purpose of carrying timber or any load projecting more than six feet to the rear, provide the same with a lamp or lamps in proper working order, and so constructed and capable of being so attached as when lighted to display to the rear a red light visible for a reasonable distance.

(3) Every person driving or being in charge of any vehicle in any street, highway, or road, to which the public have access during such period as aforesaid, shall keep such lamp or lamps properly trimmed, lighted, and attached.

Penalty.

2. If any person offends against any of the provisions of this Act, he shall be liable on summary conviction for each and every such offence to a penalty not exceeding forty shillings, and in the case of a second or subsequent conviction to a penalty not exceeding five pounds:

Provided that, if a person driving or being in charge of a vehicle is charged with an offence under this Act, he shall not be convicted thereof if he proves to the satisfaction of the court that such offence arose through the neglect or default of some other person, whose duty it was to provide the vehicle with a lamp or lamps.

3.—(1) The council of any borough may by order approved by the Secretary of State exempt from the operation of this Act, subject to any conditions mentioned in the order, any vehicle which is carrying any inflammable goods of a kind specified in the order, or any vehicle being within any place specified in the order in which, in the opinion of the council, it would be dangerous to enforce the provisions of this Act owing to the fact that inflammable goods are usually stored or dealt with in or near the place.

Power of council of a borough to make orders of exemption.

(2) Public notice of a proposal to make any order, and of the manner in which objections may be lodged to the proposed order, and of any order when made and approved, shall be given by the council of the borough in such manner as may be directed by the Secretary of State.

(3) The Secretary of State shall, before approving any order under this section, consider any objections to it which may be lodged in manner provided by this section, and may, if he thinks fit, order that a local inquiry be held with respect to the approval of the order, or with respect to any objections to the order.

(4) The person holding any such inquiry shall receive such remuneration as the Secretary of State may determine, and the remuneration and the expenses of the local inquiry shall be paid by the council of the borough out of the borough fund or rate.

(5) In the application of this section to the county of London, the London County Council shall be substituted for the council of a borough, and the county fund for the borough fund or rate; and, in the application of this section to the city of London, the mayor, aldermen, and commons of that city, in common council assembled, shall be substituted for the council of a borough, and the consolidated rate for the borough fund or rate.

(6) The Mersey Docks and Harbour Board shall as respects the area under their control have the same power to make an order of exemption under this section as the council of a borough have as respects their borough, and the powers of the council of a borough under this section shall not extend to any part of the borough which is situated within that area.

In the application of this section to the area under the control of the Board, the Board shall be substituted for the council of the borough, and the funds at the disposal of the Board for the borough fund or rate.

4. The council of any county may by order exempt from the operation of this Act vehicles carrying in the course of harvesting operations any farm produce to stack or barn during such months or periods in the year as may be specified in the order, and any such orders may be made either to take effect throughout the whole county or to take effect in part only of the county. A copy of any order made by a council under this section shall, as soon as may be after it is made, be sent to the Secretary of

Power of county council to make orders of exemption for the purpose of harvesting.

State, and any such order shall be published by the council by advertisement or otherwise in such manner as the council think best adapted for giving public notice thereof.

Application of
Act and repeal
of existing
byelaws.

51 & 52 Vict.
c. 41.

59 & 60 Vict.
c. 36. ..

28 & 29 Vict.,
c. 83.
61 & 62 Vict.
c. 29.

45 & 46 Vict.
c. 50.

5.—(1) This Act shall apply to every sort of vehicle except the following :—

(a) Any bicycle, tricycle, or velocipede to which the provisions of section eighty-five of the Local Government Act, 1888, requiring lamps to be carried, apply ;

(b) Any light locomotive or motor car which is required to carry lamps under section two of the Locomotives on Highways Act, 1896, or any regulations made thereunder ;

(c) Any other locomotive which is required to carry lights under section three of the Locomotives Act, 1865, as amended by section five of the Locomotives Act, 1898, or wagon drawn by that locomotive ;

(d) Any vehicle drawn or propelled by hand.

(2) This Act shall apply to any machine or implement of any kind drawn by animal traction as it applies to vehicles.

(3) Any byelaws under the Local Government Act, 1888, the Municipal Corporations Act, 1882, or any other Act, and any provisions of any local and personal Act, or byelaws or regulations made thereunder by a local authority, with respect to the carrying of lights on vehicles, shall so far as respects vehicles to which this Act applies cease to have effect, but this provision shall not affect any power under any such Act to make, with respect to the carrying of lights on vehicles, any fresh byelaw or regulation imposing obligations additional to those imposed by this Act.

(4) This Act shall apply to vehicles in the public service of the Crown, subject to any exceptions which His Majesty may make by Order in Council in the interests of the naval or military service of the Crown, and in the case of any such vehicle the person whom the department, in whose service the vehicle is used, names as the person actually responsible shall be deemed for the purposes of this Act to be the person who causes or permits the vehicle to be in any street, highway, or road.

Extent of Act.

6. This Act shall not apply to Scotland.

Application to
Ireland.

7. In the application of this Act to Ireland, the Lord Lieutenant shall be substituted for the Secretary of State, and the provision as to the position of the lamp, if only one lamp is provided, shall not apply in the case of a bicycle, tricycle, velocipede, or other similar machine.

Short title.

8. This Act may be cited as the Lights on Vehicles Act, 1907.

Commence-
ment of Act.

9. This Act shall come into force on the first day of January nineteen hundred and eight.

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